

Court No. - 32

Case :- WRIT - C No. - 6092 of 2018

Petitioner :- Anmol Laghu Udyog

Respondent :- Dakshinanshal Vidut Veteran Nigam And Another

Counsel for Petitioner :- Kailash Nath Kesharwani

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Arvind Kumar Tripathi,J.

Hon'ble Salil Kumar Rai,J.

Heard learned counsel for the petitioner, learned counsel for Power Corporation, learned Standing and perused the record.

The present Writ Petition under Article 226 of the Constitution of India has been preferred with the prayer to issue writ of certiorari quashing the impugned notice dated 31.1.2017 (annexure-10) and the impugned Fixed charge bill dated 9.3.2017 and 10.3.2017 (annexure-13) in respect of petitioner Power Connection No.2401/111626 and further prayer is to issue mandamus commanding respondents to refund the amount of Rs.604696/- realised on 4.2.2017 and the amount of Rs.1666761.88 realised as fixed charge by bill dated 9.3.2017 and 10.3.2017 alongwith interest of rate 18% per annum.

Learned counsel for the petitioner submitted that without following procedure provided in Electricity Supply Code 2005, the petitioner was asked to deposit the amount. There is a valid connection. It is not a case of theft. However, in the notice the case of theft was shown by the respondent Power Corporation. Since the connection was disconnected and fixed deposit are being charged even for that period, when the supply was disconnected, hence the impugned order is liable to be quashed and the direction be issued for return of the amount deposited.

Learned counsel for the Power Corporation submitted that there was final assessment and the charge was for the period when there was connection and not for the period when the supply was disconnected. He further submitted that there is a statutory provision regarding the appeal, hence the present petition is not maintainable.

Considered the submissions of counsel for the parties.

Admittedly the amount has already been deposited by the petitioner.

Notice was issued on 12.1.2017 and thereafter final assessment was made on 31.3.2017. According to annexure-10 to the petition, after considering the representation of the petitioner and hearing, the final assessment was made though according to petitioner nor the representation was considered nor the opportunity of personal hearing was given. Since there is right of appeal, hence this factual aspect also can be examined by the appellant authority.

Learned counsel for the petitioner submitted that since the period has already expired and action by the authority are arbitrary against the provision and as such the same shall be considered in the writ petition itself.

In view of the facts and circumstances since there is right of appeal and if the appeal is preferred within two weeks from today, the appellate authority will consider the appeal on merit, in view of the facts and circumstances and will dispose of the same, as expeditiously as possible, in accordance with law.

With the above observation this petition is finally disposed off.

Order Date :- 6.3.2018

Rk